

Employment First Resource List

Revised July 2012

Introduction

The emergence of the concept of Employment First in the disability field has resulted in the development of a multitude of documents, including state legislation, policies, reports, articles, etc. The attached list, developed by the State Employment Leadership Network (SELN), is an attempt to provide a comprehensive listing of these documents, to serve as a resource to policymakers, advocates, and others on issues related to Employment First. A primary emphasis with this list has been to identify legislation, regulations, and policy directives that have resulted in official Employment First policies. In addition, a variety of other reports from individual states, as well as variety of documents that provide a national perspective, have been included.

In compiling this list, use of the term “Employment First” per se has not necessarily been a requirement for including or excluding a document. Instead the focus has been on documents that reinforce the principles of Employment First, that employment in the community should be the first and primary option for individuals with disabilities. There are number of examples (e.g., Washington State, Oklahoma) where the term “Employment First” is not part of the policy, and yet clearly the policy is an example of Employment First principles.

- Nineteen states have been identified that have an official Employment First policy (based on legislation, policy directive, etc.). Seven states have passed legislation: **California, Delaware, Kansas, Pennsylvania, Virginia, Utah, Washington**. The other 12 (**Arkansas, Colorado, Connecticut, Louisiana, Maryland, Massachusetts, Missouri, New Jersey, Massachusetts, Ohio, Oklahoma, Tennessee**) have a policy directive, Executive Order, or similar official policy statement.
- Six policies are cross-disability: **Arkansas, Delaware, Kansas, New Jersey, Virginia, Utah**. The remainder of states with policies, have policies that focus exclusively on individuals with intellectual and developmental disabilities: **California, Colorado, Connecticut, Louisiana, Maryland, Massachusetts, Missouri, New Jersey, Massachusetts, Ohio, Oklahoma, Pennsylvania, Tennessee, Utah, Washington**.
- The other 13 states on this list (**Florida, Georgia, Illinois, Indiana, Iowa, Minnesota, New Mexico, New York, North Carolina, North Dakota, Rhode Island, Texas, Wisconsin**) have Employment First efforts and initiatives underway, but at this point it appears no official Employment First policy has been issued.

It is important to recognize that the presence or lack of presence on this list of any state should necessarily be an indicator regarding the state’s focus on employment for people with disabilities. There are a number of states that have not been linked with Employment First, who have consistently had relatively strong outcomes in terms of employment of people with disabilities.

In the course of developing this document, the focus has been on including as many examples as possible, particularly in terms of resources from individual states. The underlying rationale for doing so is to provide an understanding of the wide range of approaches to Employment First. Inclusion of specific policies and documents on this list should in no way be viewed as an endorsement of these documents, and in fact, the Employment First legislation/policies that have been developed vary significantly in terms of the strength and clarity of their language.

The wide range of attention and emphasis on Employment First has been encouraging, and provides a potential catalyst for the long needed increase in workforce participation for individuals with disabilities. At the same time, it is important to recognize that creation of documents, reports, and policies, in and of itself, will not result in increase in workforce participation, without a long-term commitment to action steps that make the Employment First vision a reality for all citizens with disabilities.

General Information on Employment First

1. APSE PUBLICATIONS

- a. **APSE Employment First Statement:** Statement outlining principles of Employment First - www.apse.org/docs/APSE%20Employment%20First%20Statement%20-%20FINAL-1.pdf
- b. **APSE Employment First White Paper:** “Establishing a National Employment First Agenda” paper from APSE - www.apse.org/docs/Employment%20First%20Paper%20609%5B1%5D.pdf
- c. **APSE Connections-Employment First:** Article from JTPR APSE Connections advocating a national Employment First agenda

2. **Alliance for Full Participation:** The Alliance for Full Participation (AFP) site contains a number of Employment First documents and updates from various states on their Employment First activities - www.allianceforfullparticipation.org

3. **Intellectual and Developmental Disabilities Article – *Employment First: A Beginning Not an End*:** August 2011 Intellectual and Developmental Disabilities journal article summarizing the principles of Employment First - <http://aaiddjournals.org/toc/mere/current>

4. **NACDD Report – *The Time is Now: Embracing Employment First*:** November 2011 report from the National Association of Councils on Developmental Disabilities, providing an overview of Employment First, with a particular focus on DD Council efforts - www.nacdd.org/documents/EmploymentFirstFINALNov132011_PRINT.pdf

5. **NASDDDS Article – *Workers First*:** Article from June 2009 Community Services Reporter, published by National Association of State Directors of Developmental Disabilities Services providing an overview of Employment First efforts - [www.nasddds.org/pdf/WorkersFirst\(Moseley\).pdf](http://www.nasddds.org/pdf/WorkersFirst(Moseley).pdf)

6. **NTAR Leadership Center Blog:** Blog post on Employment First by Wendy Parent, Kansas University - <http://ntarseedingchange.blogspot.com/2010/03/employment-first.html>

7. **ODEP-USDOL Employment First Memo:** January 2009 memo from the US Department of Labor Office of Disability Employment Policy stressing importance of Employment First - www.dol.gov/odep/events/employmentfirst/employmentfirst.htm

8. SELN PUBLICATIONS

- a. **SELN Employment First Publication:** “Q & A’s on State Employment First Policies”: publication from the State Employment Leadership Network (SELN) providing an overview of Employment First, and specific efforts in Colorado, Florida, Oklahoma, Pennsylvania, Tennessee, Washington State, Georgia, Minnesota, and Indiana - http://selnmembers.org/images/stories/site_documents/dmr%20request%20employment%20policy%203-08rev.pdf
- b. **SELN Maintaining Focus:** Article from March 2009 Community Services Reporter, published by National Association of State Directors of Developmental Disabilities Services “Maintaining a Focus on Employment in Tough Economic Times” – intended to encourage state systems to maintain focus on employment despite current economic conditions - www.nasddds.org/pdf/MaintainingFocusOnEmployment.pdf

State Specific Information

1. **ARKANSAS:** Governor's 2010 Executive Order establishing the Arkansas Employment First Initiative - www.arkdisabilityrights.org/doc/eo_1017.pdf
2. **CALIFORNIA**
 - a. **CA Employment First Legislation Overview:** Overview of AB 287 from California State Council on Developmental Disabilities - www.scdd.ca.gov/Legislation/AB287/Learnabout-AB287_9-09combined.pdf
 - b. **CA Legislation (passed):** Text of AB 287, California's legislation on Employment First, signed into law in October 2009 - www.leginfo.ca.gov/pub/09-10/bill/asm/ab_0251-0300/ab_287_bill_20091011_chaptered.pdf
 - c. **Committee on Employment First:** Materials from State Council on Developmental Disabilities Committee on Employment First - www.scdd.ca.gov/Committee/EmploymentFirstCommittee.htm
3. **COLORADO:** Colorado Division for Developmental Disabilities rule 16.626 stating that integrated employment is considered the primary service option for adults Day Habilitation Services and Supports - www.imaginecolorado.org/documents/QA/RulesStandardsGuidelines/DDD/DivisionForDevelopmentalDisabilitiesRulesProgramServicesAndSupports.pdf
4. **CONNECTICUT**
 - a. **CT Employment First Policy:** Employment First Policy issued by Connecticut Department of Developmental Services issue in April 2011 - http://www.ct.gov/dds/lib/dds/dds_manual/ic5/ic5po001_employment_first.pdf
 - b. **CT Policy Regarding Employment as a Priority:** Companion to April 2011 Employment First policy regarding implementation steps in individual planning process: http://www.ct.gov/dds/lib/dds/dds_manual/ic5/ic5pr001_employment_first.pdf
 - c. **CT DDS Newsletter:** Connecticut Department of Developmental Services self-determination newsletter discussing state's Employment First efforts - www.ct.gov/dds/lib/dds/self_determination/newsletters/sd_newsletter_june_2008.pdf
5. **DELAWARE**
 - a. **Delaware Legislation (passed):** Text of House Bill 319, Delaware's legislation on Employment First, signed into law in July 2012 - [http://legis.delaware.gov/LIS/lis146.nsf/vwLegislation/HB+319/\\$file/legis.html?open](http://legis.delaware.gov/LIS/lis146.nsf/vwLegislation/HB+319/$file/legis.html?open)
 - b. **Delaware Employment First Statement:** Statement from Delaware Division of Developmental Disabilities Services on Employment First - www.dhss.delaware.gov/ddds/emp_first.html
 - c. **Delaware DDDS Newsletter:** Newsletter from Delaware DDDS with further details on Employment First - www.dhss.delaware.gov/ddds/files/learn_curve_june09.pdf
6. **FLORIDA Developmental Disabilities Council Employment First Statement:** Statement from Florida DD Council in support of Employment First - <http://www.fddc.org/about/employment>
7. **GEORGIA:** Employment First Georgia Website - www.employmentfirstgeorgia.org
8. **ILLINOIS:** January 2011 report of legislatively mandated *Employment and Economic Opportunity for Persons with Disabilities Task Force*, that includes a recommendation (pp. 7-8), that Illinois become an Employment First state, according to specific principles outlined within the report: www.illinoislegalaid.org/calendarUploads/Governors%20task%20force%20report%20-%202010-11.pdf

9. INDIANA

- a. **IN APSE Employment First 2009 follow-up:** Summary of follow-up items from 2005 Indiana Employment First Summit - www.inapse.org/styles/inapse/defiles/summit%20update%2012-15-09.pdf
- B. **IN Employment First Fact Sheet:** Fact sheet summarizing 2005 Indiana Employment First Summit - www.apse.org/docs/IN_APSE_empl_first_fact_sheet.pdf

10. IOWA

- a. **Iowa's Employment First Initiative: A Call for Change of Historical Proportion:** Fall 2009 white paper outlining vision for an Employment First initiative in Iowa - www.allianceforfullparticipation.org/component/content/article/196-iowas-employment-first-initiative
- b. **Iowa Employment First Initiative Summary Points:** One-page summary of rationale for Employment First in Iowa
- c. **Iowa Employment First Initiative Summary of Findings:** October 2011 report - www.iowa-apse.org/summit/findings2.pdf

11. KANSAS

- a. **Kansas Employment First Legislation (passed):** Text of Kansas House Bill 2336 that establishes a statewide policy of employment first for all people with disabilities. Bill was signed into law in May 2011 - www.kslegislature.org/li/b2011_12/year1/measures/documents/hb2336_enrolled.pdf
- b. **Kansas Employment First Website:** Website with information on Employment First efforts in Kansas - <http://employment1st.org>
- c. **Kansas Employment First Oversight Commission:** Website with materials from commission established by Kansas legislature - www.kcdcinfo.com/index.aspx?NID=246
- d. **Kansas Employment First Initiative Work Group Information:** Information from the work group that undertook the initial Employment First efforts in Kansas - <http://www.srs.ks.gov/agency/css/Pages/DDWorkgroups.aspx#employment1st>
- e. **Kansas Report – Employment First Workgroup:** May 2009 from Employment First Initiative Work Group - www.apse.org/docs/aaaemployment_first_work_group_initial_report.pdf
- f. **Kansas Executive Orders:** Executive orders from the Governor of Kansas issued August 2010, related to employment of individuals in the community

- 12. **LOUISIANA:** July 2011 Employment First policy statement from the Louisiana Office of Citizens with Developmental Disabilities - http://new.dhh.louisiana.gov/assets/docs/OCDD/Other/Employment_First_MEMO.pdf

13. MARYLAND

- a. **Development Disabilities Administration Position Statement on Employment Services:** October 2008 statement indicating employment in the community is first service option that should be considered - <http://dda.dhmdh.maryland.gov/SitePages/Training/DDA91809.pdf>
- b. **Employment First Overview: Overview of Maryland's Development Disabilities Administration Employment First initiative** - www.reinventingquality.org/docs/ColleenGauruder-08.pdf

14. MASSACHUSETTS

- a. **MA Employment First Policy:** 2010 policy issuance from Massachusetts Department of Developmental Disability Services - <http://www.mass.gov/eohhs/gov/laws-regs/dds/policies/s-employment-first-policy-2010-2.html>
- b. **MA DDS RFQ:** Excerpts from 2009 Massachusetts Department of Developmental Disability Services service provider solicitation, highlighting a shift in Massachusetts to an Employment First Policy

15. MINNESOTA

- a. **MN Employment First Summit Report I: Report of 2007 MN Employment First Summit: A Manifesto on the Employment of Minnesotans with Disabilities in the Integrated, Competitive Workforce** - www.mnapse.org/Employment-First-Report.pdf
- b. **MN Employment First Summit Report II: Report of 2008 MN Employment First Summit - A Progress Report on Employment First Performance in Minnesota** - www.mnapse.org/Employment-First-Report-Summit-2.pdf

Minnesota Employment First Web Links:

- **Minnesota Employment Policy Initiative Website:** www.mn-epi.org/main
- **Minnesota Employment Training & Technical Assistance Website:** www.mntat.org/main
- **Minnesota Employment First Blogs:** <http://employment1st.blogspot.com>
www.mn-epi.blogspot.com

16. **MISSOURI:** January 2011 Employment First Policy, issued by the Missouri Department of Mental Health, Division of Developmental Disabilities – www.dmh.mo.gov/docs/dd/employmentpolicyfinal.doc

17. **NEW MEXICO Webinar:** “Making Employment First a Reality in NM” webinar and text - www.health.state.nm.us/DDSD/meaningfullife/EmployFirstRsres.htm

18. **NEW JERSEY:** Governor’s April 2012 press release announcing that New Jersey is an Employment First state - http://lwd.dol.state.nj.us/labor/lwdhome/press/2012/20120419_employment_first.html

19. NEW YORK

- a. **NYS Office For People with Developmental Disabilities – Statewide Comprehensive Plan – 2010-2014:** October 2010 report indicating that “OPWDD is promoting *Employment First* as a preferred outcome for all people with developmental disabilities” - www.opwdd.ny.gov/sites/default/files/documents/final507_2010-2014.pdf
- b. **OPWDD 2011 Interim Report on State Plan:** February 2011 interim report on 2010-2014 OPWDD Statewide Comprehensive Plan, that includes summary of efforts on Employment First (pp. 6-7) - www.opwdd.ny.gov/sites/default/files/documents/Interim_5_07_Rpt_Final_2_15.pdf
- c. **OMRDD 2010 Interim Report on State Plan:** February 2010 interim report on 2009-2013 OMRDD Statewide Comprehensive, that includes summary of efforts on Employment First (p. 5) - www.opwdd.ny.gov/sites/default/files/documents/OMR_Interim_Report_2_10_Final.pdf

20. NORTH CAROLINA

- a. **NC AFP Position Paper:** February 2012 Position paper from the North Carolina Alliance for Full Participation Paper on Employment First - www.nc-ddc.org/publications/ncafp_employment_first_10_19_11-endorsements-updated-2-15-12.pdf
- b. **NC APSE Article:** Article from North Carolina APSE calling for an Employment First Policy

21. **NORTH DAKOTA Employment First Summit Report:** October 2011 report summarizing the findings and plan of action resulting from the state’s Employment First summit in October 2010 - www.independencecil.org/News.aspx?ID=22

22. OHIO

- a. **Ohio Employment First Executive Order:** March 2012 Governor’s Executive Order establishing an Employment First Policy and Taskforce to Expand Community Employment Opportunities for Working-Age Ohioans with Developmental Disabilities - www.olrs.ohio.gov/sites/olrs.ohio.gov/files/u5/gov-employ-exec-order-2012-05k.pdf



- b. **SELF Waiver Employment First Policy:** Ohio Department of Developmental Disabilities Self Empowered Life (SELF) Waiver, effective July 1, 2012, that institutes Employment First Policy. Documents available include waiver (Employment First reference on p. 76), Employment First Form, and PowerPoint providing overview of SELF Waiver - [http://odmrdd.state.oh.us/medicaid/Pages/Self-Empowered-Life-Funding-\(SELF\)-waiver-.aspx](http://odmrdd.state.oh.us/medicaid/Pages/Self-Empowered-Life-Funding-(SELF)-waiver-.aspx)

23. OKLAHOMA DDS Employment Policy: Oklahoma Developmental Disabilities Services employment policy, stating that the optimal goal of waiver services is full-time employment in the community - www.okdhs.org/library/policy/oac317/040/07/0001000.htm

24. OREGON

- a. **Oregon DDS Policy:** Oregon Office of Developmental Disability Services October 2008 policy on employment for working age individuals - www.dhs.state.or.us/dd/supp_emp/docs/policy.pdf
- b. **Oregon DDS Employment First Initiative:** Includes information on Oregon's Employment First Initiative - www.dhs.state.or.us/dd/supp_emp/initiative.html
- c. **Article on Employment First:** Opinion piece, from March 2010, published in Oregon newspapers - <http://theportlander.com/2010/03/16/employment-first-for-all-oregonians>
- d. **Oregon Employment First Plan:** Plan developed for implementation of Employment First in Oregon - https://www.sidestreetshop.com/stores/195/libraries/articulate/wise_or_ef_recommendations_paper_1_28_2011_final_w_o_copyright_notice_1_.pdf

25. PENNSYLVANIA

- a. **PA Employment Legislation:** State legislation, passed in 1991, that mandates access to community employment - www.pacode.com/secure/data/055/chapter6000/subchapKtoc.html
- b. **PA Employment Policy - General:** 2005 policy document from Pennsylvania Office of Mental Retardation on community employment as a priority - www.temple.edu/thetrainingpartnership/resources/mrBulletins/misc/00-05-07.pdf
- c. **PA Employment Policy – ICFs/MR:** 2005 policy document from Pennsylvania Department of Public welfare on supporting community employment for individuals living in Intermediate Care Facilities for Individuals with Mental Retardation, indicating community employment as a priority without regard to level of disability - www.temple.edu/thetrainingpartnership/resources/mrBulletins/icf/00-06-08.pdf
- d. **PA Employment Policy – 1990:** 1990 policy document from Pennsylvania Office of Mental Retardation directing that community employment be considered as a service option before less integrated, more restricted options - www.temple.edu/thetrainingpartnership/resources/mrBulletins/misc/6000-90-06.pdf

26. RHODE ISLAND

- a. **Employment First Summit Report:** Report of Employment First Summit held in March 2010 - www.rhodestoindpendence.org/docs/final%20summary%20report.pdf
- b. **Employment First Policy White Paper:** November 2010 paper discussing options for Employment First legislation in Rhode Island - www.rhodestoindpendence.org/docs/Policy%20White%20Paper%20-%20Final%20-%202011.23.10.pdf
- c. **1115 Waiver Group Report:** September 2009 paper which contains initial proposal for Rhode Island to be an Employment First state - www.ohhs.ri.gov/documents/documents09/Employmt_Wkgp_recs.pdf

27. TENNESSEE

- a. **ARC of TN Statement:** Statement from ARC of Tennessee in support of Employment First - www.thearctn.org/Employment.php
- b. **TN DMRS Employment First Statement:** 2003 statement of support from the Tennessee Division of Mental Retardation Services in support of Tennessee's Employment First! Initiative - www.onestops.info/resources/TN_CEP/Employment_First_Final.doc



- c. **TN DMRS Newsletter 07:** 2007 Tennessee Division of Mental Retardation Services newsletter containing article on employment first – pp. 3-5 - http://tennessee.gov/dids/newsroom/publications/personally_speaking/march_07.pdf
 - d. **TN DMRS Provider Manual Excerpt:** Excerpt from 2005 Tennessee Division of Mental Retardation Services provider manual regarding Employment First, and requirements for vocational evaluation (situational assessment) every three years. To find this excerpt, go to the full manual and search for “Employment First” – www.state.tn.us/dids/provider_agencies/Provider%20Manual.pdf
 - e. **TN Employment First Overview:** Publication from the Institute for Community Inclusion providing an overview of Tennessee’s Employment First policy - www.communityinclusion.org/article.php?article_id=202
- 28. TEXAS – Legislation (proposed):** Text of Texas House Bill 785, introduced in 2009, requiring that employment services be structured to ensure employment of people with disabilities in integrated settings. Bill has not been acted on. - [ftp://ftp.legis.state.tx.us/bills/81R/billtext/html/house_bills/HB00700_HB00799/HB00785I.HTM](http://ftp.legis.state.tx.us/bills/81R/billtext/html/house_bills/HB00700_HB00799/HB00785I.HTM)
- 29. UTAH – Legislation (passed):** Text of Utah House Bill, that requires that employment be the first priority for individuals with disabilities receiving publicly funded supports. Bill was signed into law in March 2011. - <http://le.utah.gov/~2011/bills/hbillenr/hb0240.htm>
- 30. VIRGINIA – Legislation (passed):** Joint Virginia and Senate House Resolution, passed in 2012, encouraging the Secretary of Health and Human Resources and the Superintendent of Public Instruction to adopt and implement Employment First practices in providing and coordinating services to Virginians with disabilities- <http://lis.virginia.gov/cgi-bin/legp604.exe?121+sum+SJ127>
- 31. WASHINGTON STATE**
- a. **ICI Pub-Washington WAAP:** Publication from the Institute for Community Inclusion providing an overview of Washington’s Working Age Adult Policy - www.communityinclusion.org/article.php?article_id=222
 - b. **Washington State Policy:** Washington Division of Developmental Disabilities Working Age Adult Policy, initially adopted in 2004 - www.dshs.wa.gov/pdf/adsa/ddd/policies/policy4.11.pdf
 - c. **Washington State Legislation:** Legislation passed in 2012 establishing parameters around employment as first priority for individuals with developmental disabilities, with option of alternative community access program - <http://apps.leg.wa.gov/documents/billdocs/2011-12/Pdf/Bills/Senate%20Bills/6384.pdf>
- 32. WISCONSIN**
- a. **WI Employment First Flyer:** Wisconsin APSE Employment First flyer
 - b. **WI Employment First Plan 2010:** Wisconsin Employment First plan developed in 2010
 - c. **WI Employment First Rationale-FAQ:** Wisconsin APSE rationale and frequently asked questions regarding Employment First - www.wiapse.org/WI%20Employment%20First%20Initiative%20Rationale.doc
 - d. **WI Mission and Values Statement:** Wisconsin Employment First Mission and Values Statement, asking individuals to commit to Employment First
 - e. **Employment First Wisconsin Booklet:** Report from Employment First Wisconsin - www.wiapse.org/documents%20folder/EmploymentFirstBooklet.pdf
 - f. **WI Managed Care and Employment Task Force:** Recommendation that managed care long-term care system should support integrated employment as the preferred employment option (pp.6-8) - www.dhs.wisconsin.gov/wipathways/pdf/MCETF%20Final%20Report.pdf

International Efforts

Australia – Website of Employment First Australia

<http://employmentfirst.org.au>

Developed by David Hoff, Institute for Community Inclusion, UMass Boston

Copies of items that are not available on the worldwide web can be obtained by sending an email to david.hoff@umb.edu; phone: 617-287-4308



www.seln.org

SELN Working Document

The State Employment Leadership Network (SELN) is a cross-state cooperative venture of state MR/DD agencies that are committed to improving employment outcomes for adolescents and adults with developmental disabilities. Working documents contain information collected in response to state requests, and federal, state and local initiatives of interest to the SELN membership. They are intended to share work in progress but may not be a comprehensive analysis or compilation. Working documents are updated over time as information changes.

